

Prof.K. Raghavan Nair vs State Of Kerala on 26 September, 1981

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT:

THE HONOURABLE MR.JUSTICE K.M.JOSEPH
&
THE HONOURABLE MR.JUSTICE K.HARILAL

TUESDAY, THE 18TH DAY OF SEPTEMBER 2012/27TH BHADRA 1934

WP(C).No. 19819 of 2012 (B)

PETITIONERS:

1. PROF.K. RAGHAVAN NAIR,
PRESIDENT, SREE SWAPRAKASHA TRUST, SASTHAMCOTTA P.O.
KOLLAM, RESIDING AT REMYA, MANAKKARAMURI
SASTHAMCOTTA P.O., KOLLAM.
2. G.SUNDARESAN,
SECRETARY, SREE SWAPRAKASHA TRUST, SASTHAMCOTTA P.O.
KOLLAM.

BY ADV. SRI.K.SUBASH CHANDRA BOSE

RESPONDENTS:

1. STATE OF KERALA,
REPRESENTED BY THE CHIEF SECRETARY, SECRETARIATE
THIRUVANANTHAPURAM - 695 001.
2. THE DISTRICT COLLECTOR,
CIVIL STATION, KOLLAM - 691 013.
3. RURAL SUPERINTENDENT OF POLICE,
KOTTARAKKARA - 690 586.
4. THE TAHSILDAR,
KUNNATHOOR TALUK OFFICE, KUNNATHOOR
KOLLAM - 690 540.

5. CIRCLE INSPECTOR OF POLICE,
SASTHAMCOTTA P.O., KOLLAM - 690 527.

6. SUB INSPECTOR OF POLICE,
SASTHAMCOTTA P.O., KOLLAM - 690 586.

BY GOVERNMENT PLEADER SHRI DHANESH MATHEW MANJOORAN

THIS WRIT PETITION (CIVIL) HAVING COME UP FOR ADMISSION ON 18-09-2012,
THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

Wpc 19819/2012

APPENDIX

PETITIONER(S) EXHIBITS

EXHIBIT P1. TRUE COPY OF THE TRUST DEED NO.IV/68 DATED 26.09.1981.

EXHIBIT P2. TRUE COPY OF THE GIFT DEED DATED 17.10.1981 TRANSFERRING
14.97 ARES OF PROPERTY TO THE TRUST.

EXHIBIT P3. TRUE COPIES OF THE BASIC TAX RECEIPTS DATED 01.06.2010 AND
15.06.2011 OF THE TRUST PROPERTY.

EXHIBIT P4. TRUE COPY OF THE LOCATION SKETCH AND POSSESSION CERTIFICATE
OF THE TRUST PROPERTY ISSUED BY THE SASTHAMCOTTA VILLAGE OFFICER.

EXHIBIT P5. TRUE COPY OF THE BUILDING PERMIT NO.C2.329/10-11 DATED
27.09.2010 BY THE SASTHAMCOTTA GRAMA PANCHAYATH.

EXHIBIT P6. TRUE COPY OF THE ORDER DATED 21.12.2010 BEARING NO.A4-
17779/10 OF THE 4TH RESPONDENT.

EXHIBIT P7. TRUE COPY OF THE INAUGURATION NOTICE OF THE SASTHAMCOTTA
POLICE STATION DATED 27.02.2011.

EXHIBIT P8. TRUE COPY OF THE LETTER OF THE SASTHAMCOTTA VILLAGE OFFICER
DATED 07.04.2011.

EXHIBIT P9. TRUE COPY OF THE REPRESENTATION DATED 14.06.2011 SENT TO
THE RESPONDENTS AND OTHERS.

EXHIBIT P10. TRUE COPY OF THE LETTER RECEIVED FROM THE OFFICE OF
REVENUE MINISTER DATED 23.06.2011.

EXHIBIT P11. TRUE COPY OF THE STATEMENT FILED BY THE 4TH RESPONDENT
WITH THE DOCUMENTS IN W.P.(C) NO.22782 OF 2011.

EXHIBIT P12. TRUE COPY OF THE JUDGMENT IN W.P.(C) NO.22782 OF 2011
DATED 30.11.2011.

EXHIBIT P13. TRUE COPY OF THE THE REPLY OF 2ND RESPONDENT TO ADV.A.ARAVINDAKSHAN PILLAI DATED 14.05.2012.

EXHIBIT P14. TRUE COPY OF THE PAPER REPORT MALAYALA MANORAMA DAILY DATED 25.07.2012.

EXHIBIT P15. TRUE COPY OF THE REPRESENTATION SENT TO THE RESPONDENTS AND OTHERS DATED 30.07.2012.

EXHIBIT P16. TRUE COPY OF THE REPLY DATED 07.08.2012 SUBMITTED BEFORE THE ADDITIONAL TAHSILDAR, KUNNATHOOR.
RESPONDENTS' EXHIBITS nil
ks.

True copy

P.s.to Judge

K.M. JOSEPH & K. HARILAL JJ.

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W.P.(C)No. 19819 of 2012

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Dated this the 18th day of September 2012

JUDGMENT

K.M.Joseph,J.

The petitioner has approached this Court seeking the following reliefs:

i) To issue a writ in the nature of mandamus or any other appropriate writ, direction or order directing respondents to desist from causing obstruction, harassing and preventing the petitioners, other members of the trust and their workers in constructing the compound wall around Ext.P2 property as per Ext.P5 permit and direct respondents

2 to 6 to remove the seized custody of vehicles and articles from the trust property.

ii) Issue a writ in the nature of mandamus or any other appropriate writ direction or order directing the respondents to afford adequate and effective police protection to the petitioners, other members of the trust and their workers in constructing the compound wall around Ext.P2 property as per Ext.P5 permit.

2. Briefly put, the case of the petitioner is as follows:

The petitioners are the President and Secretary of Sreeswaprakasha Trust created by Brahmasree Swaprakashanantha Bharathi for the unification of Hindus and

spreading the message of Hindu Dharma. He dedicated and transferred his self acquired property to the Trust as per Gift Deed. The petitioner wants to put up a Mediation Hall, Asramom and the Trust has decided to construct a compound wall. Ext.P5 is the building permit. Ext.P6 is the order of the Tahasildar. The petitioner challenges the same and by Ext.P12 judgment, this court quashed the said order making it clear that quashing of Ext.P6 or the work undertaken on the strength of the judgment will not prevent the authorities from taking any action against the Trust in pursuance of Annexure-2 in accordance with law. Despite, Ext.P12 judgment, there is obstruction in constructing the compound wall by harassing the petitioners. It is also stated that respondents 5 and 6 dumped all the seized vehicles and other articles in the trust property.

3. We heard the learned counsel for the petitioners and the learned Government Pleader.

4. The learned Government Pleader would submit that there is no harassment. No crime has been registered and there will be no harassment of the petitioner. It is also submitted by the learned Government Pleader that no vehicles have been dumped and no vehicles have been parked in the property of the petitioner. If despite the assurance of the respondents, the vehicles are found parked in the property of the petitioner, the petitioner can move the 3rd respondent and the 3rd respondent will look into the same and if it is found that the vehicles of the respondents are parking inside of the property of the petitioners, they shall be removed.

The writ petition is disposed of as above.

Sd/-

K.M. JOSEPH, JUDGE Sd/-

K. HARILAL ,JUDGE ks.

True copy P.S.to Judge